

TENTATIVE RULING

Case: **In the matter of Kaur (Estate)**
 Case No. PR-2025-0185

Hearing Date: **February 17, 2026** **Department Eleven** **9:00 a.m.**

Objector Gurbhag Singh’s unopposed motion for relief from order pursuant to Code of Civil Procedure section 473(b) is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The Court finds that neither mandatory nor discretionary relief is warranted as a result of counsel’s failure to appear at the hearing on October 1, 2025. (See *Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 166, 173-174 [“[Section 473(b)] ...affords *mandatory* relief to a party from a “default judgment or dismissal” caused by an “attorney’s mistake, inadvertence, surprise, or neglect,” section 473(b) also provides for *discretionary* relief from “a judgment, *dismissal*, order, or other proceeding taken against [the party] through his or her mistake, inadvertence, surprise, or *excusable* neglect.”]; *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423 [“Discretionary relief need not be granted for “errors by [counsel] ... in failing to calendar and appear” at a hearing.”]; Cianchetta Decl., ¶¶ 2 – 6.) There is no default judgment or dismissal that occurred as a result of the hearing on October 1, 2025, and the Court finds that Mr. Cianchetta’s neglect was not excusable.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.